

HOUSE No. 242**The Commonwealth of Massachusetts**

PRESENTED BY:

Sean Garballey and Christine P. Barber*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enhance standards of care for those with autism and intellectual and developmental disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/15/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/15/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>1/31/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>2/3/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/5/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/7/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/10/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/10/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/10/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>2/13/2025</i>
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>2/14/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/14/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/18/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/19/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/24/2025</i>

<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>2/26/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/28/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/28/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/5/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/7/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/10/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/14/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/14/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/17/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>3/17/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>3/21/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/31/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/31/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/4/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/4/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>4/14/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>5/20/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>6/25/2025</i>

HOUSE No. 242

By Representatives Garballey of Arlington and Barber of Somerville, a petition (accompanied by bill, House, No. 242) of Sean Garballey, Christine P. Barber and others for legislation to enhance standards of care for those with autism and intellectual and developmental disabilities. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enhance standards of care for those with autism and intellectual and developmental disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, within one year of the date of
2 enactment, the executive office of health and human services shall create and maintain an
3 integrated state plan to develop training and education as well as standards of care by appropriate
4 healthcare providers related to the diagnosis, treatment, and care of patients with intellectual and
5 developmental disabilities, including autism spectrum disorders and those with intersecting
6 marginalized identities. The plan should include implementation steps and recommendations
7 from the advisory committee on intellectual and developmental disabilities that includes, but is
8 not limited to: (1) continuing education requirements for applicable healthcare providers related
9 to diagnosis, treatment, and care of patients with intellectual and developmental disabilities,
10 including autism spectrum disorders and those with intersecting marginalized identities,
11 inclusive of the physical and psychological impacts of emergency department boarding and

12 strategies to support patients and families when boarding is unavoidable; (2) implementation of a
13 strategy for the adoption of standards for improving assessment and diagnosis of intellectual and
14 developmental disabilities, including autism spectrum disorders and those with intersecting
15 marginalized identities, for patients during routine outpatient primary care examinations; and (3)
16 coordination with applicable state licensure boards, as recommended by the advisory committee
17 on intellectual and developmental disabilities, the adoption of appropriate continuing education
18 requirements related to intellectual and developmental disabilities, including autism spectrum
19 disorders and those with intersecting marginalized identities, as part of licensure renewals.

20 Within six months of the date of enactment, there is hereby established an advisory
21 committee on intellectual and developmental disabilities, including autism spectrum disorders
22 and those with intersecting marginalized identities. Said advisory committee shall be comprised
23 of the following experts: (i) a designee of the secretary of health and human services; (ii) a
24 designee of the commissioner of public health; (iii) two health care providers with expertise in
25 the diagnosis, treatment, and care of patients with intellectual and developmental disabilities,
26 including autism spectrum disorders and those with intersecting marginalized identities; (iv) two
27 patient advocates or family members of those with intellectual and developmental disabilities,
28 including autism spectrum disorders and those with intersecting marginalized identities; and (iv)
29 five statewide trade organizations that include the Arc of Massachusetts, the Massachusetts
30 Health and Hospital Association, the Massachusetts Medical Society, and Massachusetts
31 Psychiatric Society, and the Massachusetts Psychological Association. The advisory council
32 shall develop recommendations for statewide standards for healthcare professionals regarding
33 diagnosis, treatment, and care for patients with intellectual and developmental disabilities,
34 including but not limited to, autism spectrum disorders and those with intersecting marginalized

35 identities. Said standards shall include recommendations for training of healthcare providers,
36 including but not limited to, physicians, psychologists, psychiatrists, physician assistants,
37 registered nurses, and advanced practice registered nurses.